

**IN THE HIGH COURT OF GUJARAT AT AHMEDABAD****R/FIRST APPEAL NO. 1648 of 2005**

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BHALKRISHN K NAIR THRO' LEGAL HEIRS & ORS.

Versus

CITY SURVEY SUPERINTENDENT & ORS.

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Appearance:

MR YATIN SONI(868) for the Appellant(s) No. 1,1.1,1.2,1.3,1.4,1.5

MS DHWANI TRIPATHI, AGP for the Defendant(s) No. 1,2,3

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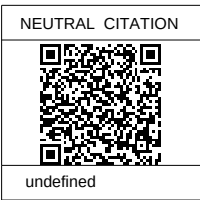
CORAM:HONOURABLE MR. JUSTICE J. C. DOSHI

Date : 05/08/2026

ORDER

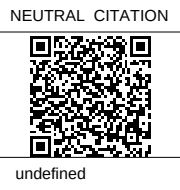
1. The short question fall for consideration is whether a plaintiff, having failed to adduce any documentary evidence to establish the legality of his possession over the suit property, can maintain a suit for permanent injunction to restrain the State Government from initiating eviction proceedings? Consequently, whether the appellant/plaintiff has established a legally enforceable right to remain in undisturbed possession of the suit property?

2. The plaintiff who failed to secure any decree in his favour in Special Civil Suit No.711 of 1988 preferred this appeal under section 96 of the CPC against judgment dated 14.03.2005 passed by learned City Civil Court No.8, Ahmedabad dismissing the civil suit.



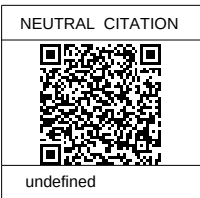
3. The original plaintiff, Mr. Balkrishna Nair, instituted the present Special Civil Suit seeking a decree of declaration and perpetual injunction against the City Survey Superintendent, the District Collector, Ahmedabad, and the State of Gujarat. The subject matter of the suit relates to the immovable property identified as Municipal Corporation No. 2202/3, bearing City Survey No. 4533, situated opposite Victoria Garden, Bhadra, Ahmedabad (hereinafter referred to as the '**suit property**'). During the pendency of the suit, the original plaintiff demised, whereupon his legal heirs and representatives were brought on record as Plaintiff Nos. 1.1 to 1.5. Prior to the filing of the suit, the original plaintiff had preferred a Revision Petition before the Special Secretary, Revenue Department (SSRD), which was dismissed vide Order No. SRD/GMN/1020/86 dated 20.12.1987. Consequent to the dismissal of the Revision Petition, Defendant No. 1 (the City Survey Superintendent) issued an eviction notice dated 30.12.1997, directing the plaintiff to hand over vacant possession of the suit property within ten days. Aggrieved by the notice and having remained unsuccessful before the SSRD, the plaintiffs filed the underlying suit to restrain the State and its instrumentalities from dispossessing them from the suit property.

4. The plaintiff's case is founded upon the pleading that the suit property was allotted to one Mr. Madhusudan Acharya on 18.01.1980. Prior to the year 1945, the plaintiff had been inducted into the suit property as a lessee by the said Mr. Madhusudan Acharya, to whom the plaintiff subsequently paid



rent on 30.06.1981. The plaintiff was surprised by a notice dated 06.11.1986 issued by Defendant No. 1 (the City Survey Superintendent), directing the plaintiff to hand over vacant possession of the suit property. Upon acquiring knowledge of an underlying order passed by the District Collector on 27.10.1986, and after obtaining a certified copy thereof, the plaintiff preferred a Revision Application before the Special Secretary, Revenue Department (SSRD). In the said Revision Application, the plaintiff challenged the Collector's order on the ground of a gross violation of the principle of *audi alteram partem*. The plaintiff contended that the District Collector had passed the adverse order without affording an opportunity of hearing to the plaintiff, who is in actual physical possession of the suit property. Prior to the passing of any such order, a statutory notice was mandatorily required to be issued to the person in actual possession to comply with the principles of natural justice. The plaintiff asserts that his settled leasehold rights cannot be extinguished or prejudiced without a fair opportunity of a hearing.

5. In the aforesaid premises, the plaintiff prayed for a decree of declaration and perpetual injunction. The Defendant-State Government contested the suit by filing a written reply, contending that the suit property was originally granted to Mr. Madhusudan Acharya under specific terms and conditions of allotment, which the original allottee subsequently breached. Consequent to the said breach of conditions, the allotment was cancelled and the suit land

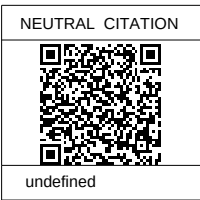


vested in the State Government. The State Government further contended that the plaintiff, not being recognized allottee of the suit property, cannot claim any independent legal right or maintain a right to be heard. Furthermore, the State asserted that the Special Secretary, Revenue Department (SSRD), had adjudicated the Revision Application preferred by the plaintiff after affording him the fullest opportunity of a hearing. Consequently, it was contended that the principles of natural justice were fully complied with, and the suit was liable to be dismissed.

6. Learned Trial Court fixed the issues after permitting both the parties to lead evidence and ultimately, dismissed the suit.

7. Being aggrieved, plaintiff has filed present appeal.

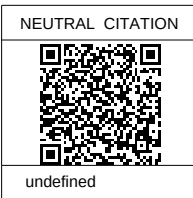
8. Learned advocate Mr.Soni referred to judgment and decree passed in Civil suit No.2638 of 1988 by learned City Civil Court, Ahmedabad which is preferred by Adambhai Husani, another tenant of Mr.Madhusudan Acharaya and submitted that case of the appellant / plaintiff is situated on same footing. Present appellant was also tenant of Mr. Madhusudan Acharaya. It is submitted that learned civil Court in that suit passed the order and held that there is violation of principle of natural justice and thus the notice which had been issued for eviction by the Civil City Superintendent is non-est and illegal. It is further submitted that learned Civil Court observed that by the order of Collector, land is vested with



Government and not eviction of land and therefore, for seeking eviction, State Government has to follow due process of law. Learned advocate Mr.Soni also referred to order passed by Co-ordinate Bench in First Appeal No.1166 of 2003 dated 03.05.2005 to submit that judgment and decree passed in civil Court has been confirmed by High Court. Relying on judgment of this Court, learned advocate Mr.Soni submitted that plaintiff's possession in suit property may be declared as legal and rightful and may not be evicted without due process of law. Alternately, he prayed that plaintiff be given one more chance to establish his case before the learned Trial Court by remanding the matter for fresh consideration.

8.1. Making above submissions, learned advocate Mr. Soni submitted to allow the appeal.

9. As against aforesaid submissions, learned AGP Ms. Tripathi submitted that there is stark difference between the judgment in the case of Adambhai Husani relied by learned advocate for the appellant and in the present case. It is submitted that in the case Adambhai Husani, plaintiff has produced documentary evidence to suggest that he has some legal right, whereas, in the present case, plaintiff has totally failed to prove any documentary evidence on record, therefore, learned Trial Court has rightly passed order. She has taken this Court through finding of learned Trial Court on issue no.3 and submitted that all the contention raised by appellant / plaintiff have been dealt by the learned Trial Court by referring to section 202 of the Bombay Land Revenue



Code. Therefore, it is submitted that there is no reason to allow suit property in plaintiff's possession.

9.1. Upon above submissions, learned AGP Ms.Tripathi submitted to dismiss the appeal.

10. Having heard rival submission of both sides, paying anxious consideration, as also having gone through impugned judgment and Record and proceedings, at the outset, let refer issues fixed by the learned Trial Court.

"(1) Whether the plaintiff proves that he is tenant of property bearing Municipal Census No. 2202/3, a part of Survey No. 4533 admeasuring 550 sq.mts. and it was sold by State of Gujarat to one म२. Madhusudan Acharya on 18-1-80 ?

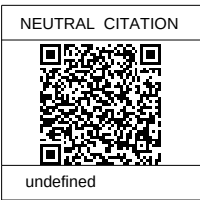
(2) Whether plaintiff proves that said land is sold to said Mr. Acharya and requisite sanad is also issued in his favour ?

(3) Whether plaintiff proves that order dated 27-10-86 and subsequent order dated 18-4-88 issued by defendant no.2-3 respectively are violative of principle of natural justice, Illegal, arbitrary and void? If co, whether subsequent notice dated 30-12-87 issued by defendant no. 1 is illegal and violative of principle of natural justice?

(3A) Whether the defendant proves that this court has no jurisdiction to try and decide the 'suit ?

(3B) Whether the defendant proves that plaintiff change the user of property from residential commercial unauthroizedly and illegally? If yes, what effect ?

(4) Whether plaintiff is entitled to relief of perpetual injunction ? If yes, to what extent?

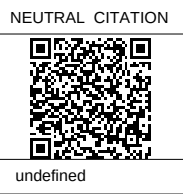


(5) *What order and decree ?*

11. Learned Trial Court answered issue nos.1 and 2 “partly in negative” and “partly in affirmative”; issue no.3, 3(A), 4 “in negative”, issue no.4 “does not survive” and issue no.5 as per final order.

12. A perusal of the impugned judgment and the Record and Proceedings (R&P) reveals that one of the plaintiffs deposed as a witness at Exhibit 38. In support of their case, the plaintiffs produced documentary evidence along with a list at Exhibit 3, comprising: the notice issued by the City Survey Superintendent (Exhibit 45), the order passed by the District Collector (Exhibit 46), the order passed by the Special Secretary, Revenue Department (SSRD) (Exhibit 47), and the subsequent eviction notice issued by Defendant No. 1 (Exhibit 48). Except these documentary evidence, no other evidence / proof was adduced by the plaintiffs. The Defendant-State Government chose not to lead oral evidence, but relied on the documentary evidence produced at Exhibit 44.

12.1. An analysis of the dispute reveals that the plaintiffs claim that he acquired leasehold rights from Mr. Madhusudan Acharya, the original allottee to whom the suit property was allotted by the State Government. The plaintiffs contend that, notwithstanding the absence of documentary evidence proving their leasehold rights, they cannot be dispossessed



without due process of law, as the mere vesting of land in the Government does not automatically equate to taking physical possession of the suit property. The State Government places reliance on Section 202 of the Bombay Land Revenue Code, 1879, which empowers the District Collector to summarily evict persons in wrongful possession of public land. The State further relies upon the decision of the Revisional Authority (SSRD), which confirmed order passed by the Collector to contend that reasonable opportunity of hearing has been granted to plaintiff, for as much principle of natural justice is fully complied.

13. At this juncture, finding of learned Civil Court on issue nos.1,2 and 3 are relevant. Para 6 to 9 of impugned judgment deciding issue nos.1 to 3 reads as under :-

“Issue No.1 and 2

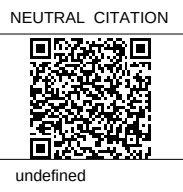
6. The burden to prove tenancy rights of the plaintiff in respect to the suit property lies upon the plaintiffs. In order to prove this fact of tenancy rights in respect to suit property and more particularly enjoying the suit property as tenant prior to 1949, the plaintiffs rely upon the oral evidence adduced below Ex.38. Except bare words in the oral deposition, not a single document is on record so as to infer leasehold rights granted to the plaintiffs either by the State or by Mr. Madhusudan Acharya. Though, it specifically deposed by the plaintiff in his deposition that he is in possession of rent receipt after the year 1945 but, he has not produced the same before the court. various orders on record specifically reveals that State has granted leasehold rights in respect to suit property to said Mr.Madhusudan Acharya in the year 1960 and subsequently suit property sold to Mr. Madhusudan Acharya for rsidential use under the old tenure vide Sanad dated 18-1-1980. So, for want of



iota of evidence as to holding leasehold rights and possessing the suit property as such since 1945, and further conducting work of motor repairing, the court cannot jump to the conclusion that plaintiffs are in possession of the suit property since 1945 and prior to it. So far as second part of the issue is concerned, there is no much dispute about the fact that the suit property was sold by the State to Mr. Acharya on 18-1-1980 and accordingly, I answer issue nos. 1 & 2 partly in negative and partly in affirmative in as much as plaintiff failed to prove his tenancy right, in respect to suit property prior to 1945, but have succeeded to prove the fact of selling of the suit property by the State to one Mr. Madhusudan Acharya on 18-1-1980. Since, none of the parties have produced Sanad issued to Mr. Madhusudan Acharya, except selling of the suit land said Mr. Acharya by the State, no other facts stands proved.

Issue No.3

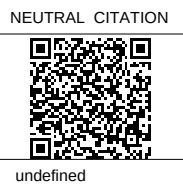
It is the case of the plaintiff that notice dated 30-12-87 Issued by the defendant no.1 vide exh. 46 te null and void and if at all the plaintiff was found to be unauthorized occupier of the autt property then, State is bound to initiate proceedings under the provision of Public Premises Act or Revenue Code (Now it will be referred to as the said Coce). It is under the Bombay Land further urged that since the land is not vested in the State by specific order of eviction passed in this regard, plaintiff cannot dispossessed from the suit property without extending opportunity of hearing in accordance with law. be On careful examination of documentary evidence on record, it is an admitted fact that at the first instance the suit property was Mr. leased to of Madhusudan Acharya in the year 1960 and subsequently in the year 1980, the suit property came to be sold to him for residential use only vide condition No. 4 of Sanad. In the order of District Collector vide Ex. 46, it seems that because breach of the said condition, show cause notice vide dated 22-8-86 was served upon him and thereafter, defendant no. 2 ordered vesting of the suit property in the State with super structure standing thereon. Admittedly, said order was not carried further by Mr. Madhusudan Acharya, but deceased plaintiff



carried the matter further by way of revision before the Special Secretary who in turn confirmed the order of defendant No. 2 vide order Ex. came to be passed on 20-12-87. So admittedly, plaintiff was never put in possession in any capacity by the State. But still however, plaintiff wants to protect the possession on the ground that he was tenant of said Mr. Madhusudan Acharya and as such, he is in possession of the suit property prior to 1945. In fact, there is no iota of evidence suggesting actual and physical possession of the suit property with plaintiff prior to 1945 on thereafter at any point of time except bare words. Under these circumstances, in order to comply with the order of special Secretary, City Survey Superintendent issued notice dated 30-12-87 vide Exh.48 interalia calling upon the plaintiff to vacate the suit property within 10 days and thus, defendant no.1 invoked powers u/s. 202 of the said Code. It is well settled that Government has power to summarily evict u/s. 61, 66, 79-A of the said Code and once summarily eviction order is passed by the defendant No.2 against Nr. Madhusudan Acharya, it becomes final and conclusive and therefore plaintiff has no right to challenge the said order on behalf of Nr. Madhusudan Acharya, Further, notice issued by the defendant no.1 does not operate in the field of taking decision or making the order of eviction, but it operates in the field of enforcement of decision of defendant No.2 & 3. It is fruitful to reproduce Section 202 of the said code so as to deal with the controvescy involved in the suit in a better way.

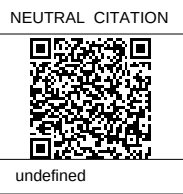
Section 202 Collector how to proceed in order to evict any person wrongfully in possession of land:-

Whenever it is provided by this, or by any other Act for the time being in force, that the Collector nay or shall evict any person wrongfully in possession of land, auch eviction shall be made in the following manner viz- by serving a notice on the person or persons in possession requiring them within such time as may appear reasonable after receipt of the said notice to vacate the land, and if such notice is not obeyed by removing or deputing a subordinate to remove any person who may



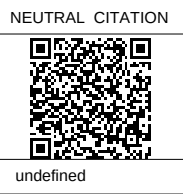
refuse to vacate the same, and if the officer removing any such person shall be resisted or obstructed by any person, the Collector shall hold a summary inquiry into the facts of the case, and if satisfied that the resistance or obstruction was without any just cause, and that such resistance and obstruction still continue, may, without prejudice to any proceedings to which such person may be liable under any law for the time being in force for the punishment of such resistance or obstruction issue a warrant for the arrest of the said person, and on his appearance commit him to close custody in the office of the Collector or of any Mamlatdar or Mahalkart, or send him with a warrant, in the form of Schedule I, for imprisonment in the civil jail of the district for such period not exceeding thirty days, as may be necessary to prevent the continuance of such obstruction or resistance".

Section 202 of the said Code contemplates actual eviction if notice is not obeyed by removing any person who refused to vacate the land. If at all the plaintiff wanted to offer any resistance or obstruction then, latter part of Section 202 contemplates summary inquiry by the Collector. It seems that plaintiff has not resorted to with the said provision of Section 202 and straight way filed a suit for declaratory decree and perpetual injunction against the defendants and therefore, it is not possible to accept contention of the L.A. Mr. Patel for the plaintiff that there is violation of principle of natural justice on the part of the defendants. If a decision or order is made at the back of the plaintiff and if at all plaintiff wants to get opportunity to be heard being in possession of the suit property then, power to offer resistance to the enforcement of orders passed by defendant Nos. 243 lies with the defendant No. 2 as provided in latter part of Section 202 of the said Code and not the civil court. In nutshell, notice issued by defendant not to vacate the suit property within 10 days does not mean to a decision or order of eviction because the said decision has been taken under the substantive provision conferring on collector power to vacate a person wrongfully in possession of the land. So in view of the opportunity of hearing given to the plaintiff by the



Special Secretary, though he has no locusstandi to carry order of defendant No.2 before the Special Secretary for and on behalf of Madhusudan Acharya, there is no violation of principle of Mr. natural justice in this regard.

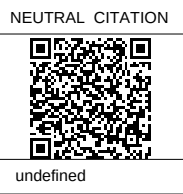
8. It is one of the contentions of L.A. Mr. R. A. Patel to the effect that since the plaintiff to an unauthorized occupant, the State is required to initiate eviction proceedings under the provision of Public Prentees (Eviction of Unauthorized Occupants) Act, 1971. In Court's opinion, the said contention not well founded because, tire definition of unauthorized occupant as defined by Section 2 (g) of the Act defines unauthorized occupation in relation to any public premises means occupation by any person without authority for such occupation and includes continuously in occupation by any person of the public premises after authority under which he was allowed to occupy the premises has expired or has been determined for any reason whatsoever. On plain reading of the plaint and evidence as it is, it is quite clear and it becomes an admitted position on record that the plaintiff was not put into possession of the suit property by any authority of the State either expressly or by impliedly. It is not the case of the plaintiff that he had been put into possession either expressly or impliedly by the authority concerned. So the meaning of the word "Unauthorized occupation" means continuous in occupation after authority allowing the occupation have been determined for any reason whatsoever. In other words the case of the plaintiff is that he came into possession of the suit property through Mr. Madhusudan Acharya without obtaining any permission from the State or came into possession under the authority of the State. So, the plaintiff can never be said to be unauthorized occupant as defined by Section 2 (g) of the said Act an as to protect him till he is evicted by following due procedure of the Taw as laid down under the said Act. In that view of the facts situation, plaintiff has miserably flailed to establish right to enjoy the property as he was never out into possession of the suit property under any lawful order of the State. person does not have any vested right or rather legal right to enjoy the property in the capacity of that right, no relief



nature of declaration can be granted in favour of auct person in light of provision contained in Section 34 of the Specific Relief Act.

9. The net effect of the discussion is that the plaintiff failed to prove that the order dated 27-10-06 passed by defendant No.2 vide Ex.46 and order dated 20-12-87 passed by the Special Secretary vide Ex. 47 are null and void either at law or on the ground of violation of principle of natural justice as alleged. As such, original land holder Mr. Madhusudan Acharya was extended an opportunity to refute the opt of breach of condition and as the same is eloquent from reading of order Ex.48. As such, plaintiff has no right to have audience in the proceedings conducted by defendant No.2 and Special Secretary. But, still however, it appears that the defendant No. 3 entertained the revision petition preferred by the plaintiff against the order of Collector. Under the circumstances, the notice dated 30-12-87 issued by defendant No.1 cannot be termed as illegal or violative of principle of natural justice in any manner as the same is nothing but issued with a view to enforce eviction order passed by the competent authority under the provision of said Code. Therefore, court is left with no option but to answer issue no. 3 in negative. "

14. It appears from the record that the plaintiff, while asserting leasehold rights over the suit property, has failed to adduce any documentary evidence to establish a legally enforceable interest or title. To substantiate the purported leasehold right, the plaintiff was required either to produce a written lease deed or to examine the original allottee, Mr. Madhusudan Acharya, as a witness. The plaintiff entirely failed to adopt either course. It is the plaintiff's assertion that he holds leasehold rights, by virtue of which he claims possession; however, had oral statements alone been considered sufficient evidence, the plaintiff's case would still



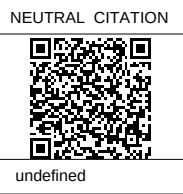
fail to succeed in the eyes of law. Furthermore, the Record and Proceedings (R&P) indicate that the suit property runs parallel to a public footpath and constitutes an encroachment upon public pedestrian rights. *Be that as it may*, the administrative record demonstrates that the plaintiff contested the eviction and resumption proceedings before the Revisional Authority but remained unsuccessful. The ultimate dismissal of the Revision Application by the Special Secretary, Revenue Department (SSRD), confirms that the plaintiff was afforded full and fair opportunity of a hearing, thereby satisfying the principles of natural justice.

15. Concept of possession has been well explained by Hon'ble Apex Court in the case of **Maria Margarida Sequeira Fernandes v/s. Erasmo Jack De Sequeira [(2012) 5 SCC 370]**. In Para 62 to 70, it is held as under : -

“62. Possession is an incidence of ownership and can be transferred by the owner of an immovable property to another such as in a mortgage or lease. A licensee holds possession on behalf of the owner.

63. Possession is important when there are no title documents and other relevant records before the Court, but, once the documents and records of title come before the Court, it is the title which has to be looked at first and due weightage be given to it. Possession cannot be considered in vacuum.

64. There is a presumption that possession of a person, other than the owner, if at all it is to be called possession, is permissive on behalf of the title-holder. Further, possession of the past is one thing, and the right to remain or continue in future is another thing. It is the latter which is usually more in controversy than



the former, and it is the latter which has seen much abuse and misuse before the Courts.

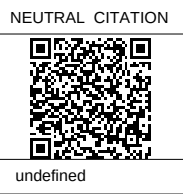
65. A suit can be filed by the title holder for recovery of possession or it can be one for ejectment of an ex-lessee or for mandatory injunction requiring a person to remove himself or it can be a suit under [Section 6](#) of the Specific Relief Act to recover possession.

66. A title suit for possession has two parts - first, adjudication of title, and second, adjudication of possession. If the title dispute is removed and the title is established in one or the other, then, in effect, it becomes a suit for ejectment where the defendant must plead and prove why he must not be ejected.

67. In an action for recovery of possession of immovable property, or for protecting possession thereof, upon the legal title to the property being established, the possession or occupation of the property by a person other than the holder of the legal title will be presumed to have been under and in subordination to the legal title, and it will be for the person resisting a claim for recovery of possession or claiming a right to continue in possession, to establish that he has such a right. To put it differently, wherever pleadings and documents establish title to a particular property and possession is in question, it will be for the person in possession to give sufficiently detailed pleadings, particulars and documents to support his claim in order to continue in possession.

68. In order to do justice, it is necessary to direct the parties to give all details of pleadings with particulars. Once the title is prima facie established, it is for the person who is resisting the title holder's claim to possession to plead with sufficient particularity on the basis of his claim to remain in possession and place before the Court all such documents as in the ordinary course of human affairs are expected to be there. Only if the pleadings are sufficient, would an issue be struck and the matter sent to trial, where the onus will be on him to prove the averred facts and documents.

69. The person averring a right to continue in possession shall, as far as possible, give a detailed particularized

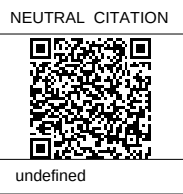


specific pleading along with documents to support his claim and details of subsequent conduct which establish his possession.

70. It would be imperative that one who claims possession must give all such details as enumerated hereunder. They are only illustrative and not exhaustive.

- (a) who is or are the owner or owners of the property*
- (b) Title of the property;*
- (c) who is in possession of the title document*
- (d) identity of the claimant or claimants to possession'*
- (e) the date of entry into possession*
- (f) how he came into possession - whether he purchased the property or inherited or got the same in gift or by any other method;*
- (g) in case he purchased the property, what is the consideration; if he has taken it on rent, how much is the rent, license fee or lease amount;*
- (h) If taken on rent, license fee or lease - then insist on rent deed, license deed or lease deed;*
- (i) who are the persons in possession/occupation or otherwise living with him, in what capacity;
as family members, friends or servants etc.;*
- (j) subsequent conduct, i.e., any event which might have extinguished his entitlement to possession or caused shift therein; and*
- (k) basis of his claim that not to deliver possession but continue in possession."*

16. In absence of aforesaid details by the plaintiff, he cannot continue his possession over the suit property to receive in possession. Plaintiff was legally required to plead and prove aforesaid details. Mere bald statement of acquiring leasehold



rights from Mr.Madhusudan Acharaya and to claim legality on the possession is insufficient on the possession, is insufficient and hallow to assert right in the Court of law.

16.1. The term due process of law has been defined in para 79 and 80 of afore-noted judgment as under :-

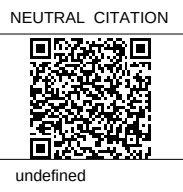
"Due process of Law

79. Due process of law means nobody ought to be condemned unheard. The due process of law means a person in settled possession will not be dispossessed except by due process of law. Due process means an opportunity for the defendant to file pleadings including written statement and documents before the Court of law. It does not mean the whole trial. Due process of law is satisfied the moment rights of the parties are adjudicated by a competent Court.

80. The High Court of Delhi in a case [Thomas Cook \(India\) Limited v. Hotel Imperial](#) 2006 (88) DRJ 545 held as under:

"28. The expressions 'due process of law', 'due course of law' and 'recourse to law' have been interchangeably used in the decisions [referred to above](#) which say that the settled possession of even a person in unlawful possession cannot be disturbed 'forcibly' by the true owner taking law in his own hands. All these expressions, however, mean the same thing -- ejection from settled possession can only be had by recourse to a court of law. Clearly, 'due process of law' or 'due course of law', here, simply mean that a person in settled possession cannot be ejected without a court of law having adjudicated upon his rights qua the true owner.

Now, this 'due process' or 'due course' condition is satisfied the moment the rights of the parties are adjudicated upon by a court of competent jurisdiction. It

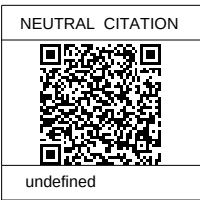


does not matter who brought the action to court. It could be the owner in an action for enforcement of his right to eject the person in unlawful possession. It could be the person who is sought to be ejected, in an action preventing the owner from ejecting him. Whether the action is for enforcement of a right (recovery of possession) or protection of a right (injunction against dispossession), is not of much consequence. What is important is that in either event it is an action before the court and the court adjudicates upon it. If that is done then, the 'bare minimum' requirement of 'due process' or 'due course' of law would stand satisfied as recourse to law would have been taken. In this context, when a party approaches a court seeking a protective remedy such as an injunction and it fails in setting up a good case, can it then say that the other party must now institute an action in a court of law for enforcing his rights i.e., for taking back something from the first party who holds it unlawfully, and, till such time, the court hearing the injunction action must grant an injunction anyway? I would think not. In any event, the 'recourse to law' stipulation stands satisfied when a judicial determination is made with regard to the first party's protective action. Thus, in the present case, the plaintiff's failure to make out a case for an injunction does not mean that its consequent cessation of user of the said two rooms would have been brought about without recourse to law."

We approve the findings fo the High Court of Delhi on this issue in the aforesaid case."

17. Learned Civil Court by the aforesaid reasons not only held that plaintiff has no right to retain possession but also held that State government has followed due process and sought eviction.

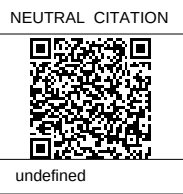
18. Learned advocate Mr.Soni for the appellant in the aforesaid circumstances failed to place on record any other factual or legal situation which would help to the case of the



plaintiff.

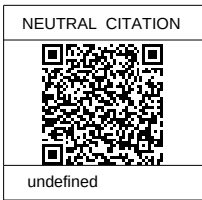
19. According to this Court, filing of suit and appeal on being failed to get favourable decision is classic example of abuse of process of law as plaintiff has no right, title or legal interest over the suit property. The plaintiff claims his possession through Madhusudan Acharya, but State Government has taken away suit property from Madhusudan Acharya and resumed the same into state property. Plaintiff's suit to establish / sustain illegal possession, occupied precious space and time of the Court since the year 1988 till now.

20. Apt to note that the Courts are duty-bound to ensure that their process is not taken as an instrument to perpetuate an illegality or to protect unauthorised occupation of Government land. A person who enters upon public property without any lawful authority does not acquire an enforceable right merely by continuing in possession or by instituting a civil proceeding. Litigation cannot become a device to indefinitely postpone eviction or to convert an unlawful possession into a legally protected status. Public property is held by the State as a trustee for the benefit of the community, and every encroachment thereon is an injury to public interest. The equitable jurisdiction of the Court is available only to those who approach with clean hands and seek protection of a lawful right; it cannot be invoked to preserve a continuing wrong. The Hon'ble Supreme Court has repeatedly cautioned that judicial proceedings must not be permitted to become a refuge for unscrupulous litigants



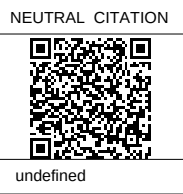
whose sole object is to frustrate lawful action of the State and prolong illegal possession. In **Dalip Singh v. State of Uttar Pradesh, (2010) 2 SCC 114**, the Hon'ble Supreme Court lamented the growing tendency of litigants to abuse the judicial process and held that a person who does not come to the Court with clean hands is not entitled to any equitable relief. In **Jagpal Singh v. State of Punjab, (2011) 11 SCC 396**, the Hon'ble Supreme Court emphatically directed that encroachments over public land should ordinarily be removed and deprecated judicial orders which have the effect of legitimizing such occupation. Likewise, in **State of Rajasthan v. Harphool Singh (Dead) through LRs, (2000) 5 SCC 652**, the Hon'ble Supreme Court held that no equity can be claimed by an unauthorised occupant against the true owner, particularly when the property belongs to the State. The judicial process is intended to vindicate legal rights and uphold the rule of law; it cannot be transformed into a mechanism for preserving unlawful possession of public property. Any attempt to invoke the jurisdiction of the Civil Court merely to stall lawful eviction or to continue an illegal occupation constitutes a clear abuse of the process of the Court and deserves to be firmly discouraged by denial of equitable relief and, where appropriate, by imposition of realistic costs.

21. Worthy reference can also be made to judgment of Hon'ble Supreme Court in the case of **Dnyandeo Sabaji Naik Versus Pradnya Prakash Khadekar [2017 (5) SCC 496]**, in para 13 and 14 has held as under :-

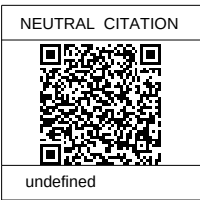


"13. This Court must view with disfavour any attempt by a litigant to abuse the process. The sanctity of the judicial process will be seriously eroded if such attempts are not dealt with firmly. A litigant who takes liberties with the truth or with the procedures of the Court should be left in no doubt about the consequences to follow. Others should not venture along the same path in the hope or on a misplaced expectation of judicial leniency. Exemplary costs are inevitable, and even necessary, in order to ensure that in litigation, as in the law which is practised in our country, there is no premium on the truth.

14. Courts across the legal system - this Court not being an exception - are choked with litigation. Frivolous and groundless filings constitute a serious menace to the administration of justice. They consume time and clog the infrastructure. Productive resources which should be deployed in the handling of genuine causes are dissipated in attending to cases filed only to benefit from delay, by prolonging dead issues and pursuing worthless causes. No litigant can have a vested interest in delay. Unfortunately, as the present case exemplifies, the process of dispensing justice is misused by the unscrupulous to the detriment of the legitimate. The present case is an illustration of how a simple issue has occupied the time of the courts and of how successive applications have been filed to prolong the inevitable. The person in whose favour the balance of justice lies has in the process been left in the lurch by repeated



attempts to revive a stale issue. This tendency can be curbed only if courts across the system adopt an institutional approach which penalizes such behavior. Liberal access to justice does not mean access to chaos and indiscipline. A strong message must be conveyed that courts of justice will not be allowed to be disrupted by litigative strategies designed to profit from the delays of the law. Unless remedial action is taken by all courts here and now our society will breed a legal culture based on evasion instead of abidance. It is the duty of every court to firmly deal with such situations. The imposition of exemplary costs is a necessary instrument which has to be deployed to weed out, as well as to prevent the filing of frivolous cases. It is only then that the courts can set apart time to resolve genuine causes and answer the concerns of those who are in need of justice. Imposition of real time costs is also necessary to ensure that access to courts is available to citizens with genuine grievances. Otherwise, the doors would be shut to legitimate causes simply by the weight of undeserving cases which flood the system. Such a situation cannot be allowed to come to pass. Hence it is not merely a matter of discretion but a duty and obligation cast upon all courts to ensure that the legal system is not exploited by those who use the forms of the law to defeat or delay justice. We commend all courts to deal with frivolous filings in the same manner."



22. For the foregoing reasons, the present First Appeal is dismissed with cost of Rs.10,000/- to be paid by the appellant - to respondent - State Government, by depositing amount of cost in Treasury office within 15 days, failing which, Collector concerned shall recover amount of cost as arrears of land revenue. Impugned judgment and decree is confirmed. Interim relief granted earlier, if any, stands vacated. Decree be drawn. Record and proceedings, if any, be send back to learned Trial Court concerned.

SATISH

(J. C. DOSHI,J)